

U.P. Revenue Code (Amendment) Act, 2016

Source: <https://indiankanoon.org/doc/173877459/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

4

]

State of Uttar Pradesh - Act

U.P. Revenue Code (Amendment) Act, 2016

UTTAR PRADESH

India

U.P. Revenue Code (Amendment) Act, 2016

Act 4 of 2016

Published on 1 January 2016

Commenced on 1 January 2016

[This is the version of this document from 1 January 2016.]

[Note: The original publication document is not available and this content could not be verified.]

U.P. Revenue Code (Amendment) Act, 2016

(U.P. Act

No. 4 of 2016

)

Statement of Objects and Reasons. - The Uttar Pradesh Revenue Code, 2006 (U.P. Act No. 8 of 2012) has been enacted to consolidate thirty nine Acts which were in force in the State of Uttar Pradesh. Thereafter it was noticed that there are many linguistic errors in the said Code which were required to be corrected besides it was also necessary to include the amended provisions of sub-section (4-F) of Section 122-B, Sections 123, 172 and 174 of the Uttar Pradesh Zamindari Abolition and Land Reforms Act, 1950 (U.P. Act No. 1 of 1951) which were amended in the year, 2007 and 2008 i.e. after passage of the said Code by both Houses of the State Legislature. In view of the above it was decided to amend the said Code to correct the linguistic errors and to include the amended provisions as aforesaid.

Since the State Legislature was not in session and immediate legislative action was necessary to implement the aforesaid decision, the Uttar Pradesh Revenue Code (Amendment) Ordinance, 2015 (U.P. Ordinance No. 4 of 2015) was promulgated by the Governor on December 16, 2015.

This Bill is introduced to replace the provisions of the aforesaid Ordinance.

Received the assent of the Governor on March 11, 2016 and published in the U.P. Gazette, Extra., Part 1, Section (Ka), dated 11th March, 2016, pp. 39-77

(As passed by the Uttar Pradesh Legislature)

An Act to amend the Uttar Pradesh Revenue Code, 2006

It is hereby enacted in the Sixty-seventh Year of the Republic of India as follows -

1.

Short title and commencement.

(1)

This Act may be called the Uttar Pradesh Revenue Code (Amendment) Act, 2016.

(2)

It shall be deemed to have come into force on December 16, 2015.

2.

General amendment in U.P. Act No. 8 of 2012.

- In the Uttar Pradesh Revenue Code, 2006, hereinafter referred to as the said Code -

(a)

for the words "Gram Sabha" wherever occurring including headings long title, preamble, marginal headings, schedules, except in Sections 4, 64, 68, 72 and 126, the words "Gram Panchayat" shall be substituted;

(b)

for the words "Gram Fund" wherever occurring, the words "Gaon Fund" shall be substituted;

(c)

in Hindi version, for the words

ftyk

or the word

ftys

or the word ^ftysa

, whenever occurring, the word

ftyk

or

ftys

or ^ftysa

shall respectively be substituted;

(d)

in Hindi version, for the word ^xkao

, whenever occurring, the word ^xkao

shall be substituted; and

(e)

in Hindi version, for the word

ckdhknkj or the word

cdk;knkj

or the word ^cdk;snkj

wherever occurring the word ^O;frdzeh** shall be substituted.

3.

Amendment of Section 1.

- In Section 1 of the said Code, in Hindi version, in subsection (3), for the word ^djasa

the word ^djasa

shall be substituted.

4.

Amendment of Section 3.

- In Section 3 of the said Code, in Hindi version, in subsection (3), for the words "मिकउरज.क" the words "मिकउरज.क ;क" shall be substituted.

5.

Amendment of Section 4.

- In Section 4 of the said Code -

(a)

in Hindi version, in clause (8), in sub-clause (b), for the words "दलह दसदव" the word "दसदव" shall be substituted;

(b)

in Hindi version, in clause (13), in sub-clause (4), for the word and punctuation mark "फुक.क" ; the words and punctuation mark "फुक.क वकस" and in sub-clause (v) thereof, for the word "इकुफुक.क" the word "इकुफुकेक.क" shall be substituted;

(c)

in clause (16), for the words "Assistant Collectors, Settlement Officers, Assistant Settlement Officers, Record Officers, Assistant Record Officers, Tahsildar and Naib Tahsildar;" the words "Chief Revenue Officers, Assistant Collectors, Settlement Officers, Assistant Settlement Officers, Record Officers, Assistant Record Officers, Tahsildars, Tahsildars (Judicial) and Naib Tahsildars;" shall be substituted;

(d)

for clause (17), the following clause shall be substituted, namely -

"(17) Revenue Officer" means the Commissioner, an Additional Commissioner, the Collector, an Additional Collector, the Chief Revenue Officer, the Sub-Divisional Officer, an Assistant Collector, the Settlement Officer, an Assistant Settlement Officer, the Record Officer, an Assistant Record Officer, the Tahsildar, the Tahsildar (Judicial), the Naib Tahsildar and the Revenue Inspector."

(e)

in Hindi version, in clause (19), for the words "अकउन जकस.क" the words "अकुजकस.क" shall be substituted;

(f)

in Hindi version, in clause (20), for the word and punctuation mark "दजस" the word and punctuation mark "दजस" shall be substituted;

(g)

in Hindi version, in clause (21), for the word and punctuation mark "गसा" the word and punctuation mark "गस" shall be substituted;

(h)

in clause (22), for the words "Gaon Fund" and "Gram Sabha" the words "Gaon Fund", "Gram Sabha" and "Gram Panchayat" and for the punctuation mark '.' the punctuation mark ';' shall be substituted;

(i)

after clause (22), the following clauses shall be inserted, namely -

"(23) 'agricultural year' means an year which begins from first day of July and ends on thirtieth day of June of a calendar year. It is also characterised as 'fasli year';

(24)

'intermediary' with reference to any estate means a proprietor, under proprietor, sub-proprietor, thekedar, permanent

lessee in Avadh and permanent tenure-holder of such estate or part thereof;

(25)

'lease' in relation to mines and minerals shall include a sub-lease, a prospecting lease and an agreement to lease or sublet, and 'lessee' shall be constructed accordingly;

(26)

'decree' shall have the meaning assigned to it in Section 2 of the Code of Civil Procedure, 1908 (Act No. V of 1908);

(27)

'State Government' means the State Government of Uttar Pradesh;

(28)

'Central Government' shall have the meaning assigned to it in Section 3 of the General Clauses Act, 1897 (Act No. X of 1897);

(29)

'Minjumla number' means a shajra number denoting a component part of a field which has theoretically been partitioned but physically has not been partitioned."

6.

Amendment of Section 5.

- In Section 5 of the said Code, for the words "the state shall be divided into revenue areas comprising divisions which may consist of one or more districts, and each district may consist of one or more Tahsils and each Tahsil may consist of one or more pargana, and each pargana may consist of two or more villages." the words "the State shall be divided into revenue areas comprising of divisions which may consist of two or more districts, and each district may consist of two or more Tahsils and each Tahsil may consist of one or more parganas, and each pargana may consist of two or more villages." shall be substituted.

7.

Amendment of Section 6.

- In Section 6 of the said Code, in Hindi version, -

(a)

in sub-section (1), at the end of clause (three), for the punctuation mark ";" the punctuation mark "|" shall be substituted;

(b)

in sub-section (3), for the words [^]fujh{kd ds eq[;ky;ksa catidzir the words [^]fujh{kd ds eq[;ky; shall be substituted.

8.

Amendment of Section 7.

- In Section 7 of the said Code -

(a)

sub-section (2) shall be omitted.

(b)

in sub-section (3), -

(i)

In Hindi version, in clause (a), for the words and punctuation mark [^]tc rd fd mlus ,slk in /kkj.k fd;k gks tks vk;qDr ds in ls fuEu Js.kh dk u gks

the words and punctuation mark [^]tc rd fd mlus vk;qDr ds in ls vU;wu Js.kh dk in /kkj.k u fd;k gks shall be substituted;

(ii)

in clause (b), for the words 'unless he has been a revenue officer' the words 'unless he has held an office not below the rank of a Collector' shall be substituted;

(c)

in Hindi version, in sub-section (4), for the words [^]U;kf;d dkjckj the words [^]U;kf;d dk;Z shall be substituted.

9.

Amendment of Section 8.

- In Section 8 of the said Code in sub-section (1), for clause (a), the following clause shall be substituted, namely -
"(a) in all matters relating to disposal of cases, appeals or revisions; and"
10.

Amendment of Section 10.

- In Section 10 of the said Code, in Hindi version, -

(a)

in sub-section (2), for the words "आवेदन" the words "आवेदन" shall be substituted;

(b)

in sub-section (3), for the words "आवेदन" the words "आवेदन" shall be substituted.

11.

Amendment of Section 11.

- In Section 11 of the said Code -

(a)

in sub-section (1), for the words "being in force." the words "being in force, and shall exercise authority over all the revenue officers in his division." shall be substituted;

(b)

in Hindi version, for sub-section (2), the following sub-section shall be substituted, namely -
"2. जट; लजक, द; क मल्ल व/कद ए.एम.य.सा एसा, द; क मल्ल व/कद विज वक; कडरसा ध फु; कडर दज लरह गसा**.

(c)

after sub-section (4), the following sub-section shall be inserted, namely -

"(5) The State Government may, at the time of making the appointment or at any time subsequent thereto, designate any Additional Commissioner, as Additional Commissioner (Judicial), and any such Additional Commissioner (Judicial) shall be allotted only judicial business. Such an Additional Commissioner (Judicial) shall exercise such powers and discharge such duties of Commissioner in such cases or classes of cases as the State Government, or in the absence of any direction from the State Government, the Commissioner of the Division, may direct."

12.

Amendment of Section 12.

- In Section 12 of the said Code, after sub-section (4), the following sub-section shall be inserted, namely -

"(5) The State Government may, at the time of making the appointment or at any time subsequent thereto, designate any Additional Collector, as Additional Collector (Judicial) and any such Additional Collector (Judicial) shall be allotted only judicial business. Such an Additional Collector (Judicial) shall exercise such powers and discharge such duties of Collector in such cases or classes of cases as the State Government, or in the absence of any direction from the State Government, the Collector of the District, may direct."

13.

Amendment of Section 13.

- In Section 13 of the said Code -

(a)

for sub-section (1), the following sub-section shall be substituted, namely -

"(1) The State Government may appoint in each district as many persons as it thinks fit to be Assistant Collectors of the first or second class".

(b)

for sub-section (2), the following sub-section shall be substituted, namely -

"(2) The State Government may place an Assistant Collector first class in-charge of one or more sub-divisions of a district, and such an officer shall be called the Assistant Collector first class in-charge of a sub-division or a Sub-Divisional Officer."

(c)

in sub-section (4), for the words "Assistant Collector" the words "Assistant Collector first class" shall be substituted;
(d)

after sub-section (5), the following sub-section shall be inserted, namely -

"(6) The State Government may, at the time of making the appointment or at any time subsequent thereto, designate any Assistant Collector first class, as Sub-Divisional Officer (Judicial) for one or more tahsils, and any such Sub-Divisional Officer (Judicial) shall be allotted only judicial business. Such a Sub-Divisional Officer (Judicial) shall exercise such powers and discharge such duties of a Sub-Divisional Officer in such cases or classes of cases as the State Government, or in the absence of any direction from the State Government, the Collector, may direct."

14.

Amendment of Section 16.

- In Section 16 of the said Code, in Hindi version, for the words [^]fufnZ'V djsa] wherever occurring, the words [^]fufnZ'V djsa] shall be substituted.

15.

Amendment of Section 18.

- In Section 18 of the said Code, for sub-section (2), the following sub-sections shall be substituted and inserted, namely -

"(2) If the officer or other person aforesaid does not comply as directed, the Collector shall impose a penalty of two hundred and fifty rupees each day till the direction is complied with, so however, total amount of such penalty shall not exceed twenty-five thousand rupees:

Provided that the officer or other person, as the case may be, shall be given a reasonable opportunity of hearing before any penalty is imposed on him.

(3)

Imposition of penalty under sub-section (2) shall not bar the prosecution for any offence or recovery of money, papers and other government property under any law for the time being in force".

16.

Amendment of Section 20.

- In Section 20 of the said Code, in Hindi version, in sub-section (1), for the words [^]losZ la[;kvksa the words losZ xkVk la[;kvksa and for the word [^]tk;sxh the word tk;saxh shall be substituted.

17.

Amendment of Section 22.

- In Section 22 of the said Code, in Hindi version, in sub-section (1), for the words [^]ysa[kiky ds gYds the words [^]ys[kiky ds gYds shall be substituted.

18.

Amendment of Section 24.

- In Section 24 of the said Code -

(a)

in Hindi version, in sub-section (1), for the word [^]Loizsj.kk

the word

Loizjs.kk

and for the words [^]tkap }kjk fofu'p; dj ldrk gS

the words

tkap }kjk dj ldrk gS

shall be substituted;

(b)

in sub-section (3), for the words "six months" the words "three months" shall be substituted.

19.

Amendment of Section 25.

- In Section 25 of the said Code, in Hindi version, for the words ^{^^}vojks/kksa ds fujkdj.k the words

vojks/kksa dks gVkus

and for the words ^{^^},sls fujkdj.k dh ykxr

the words

,sls vojks/kksa dks gVkus dh ykxr

shall be substituted,

20.

Amendment of Section 26.

- In Section 26 of the said Code, in Hindi version, for the words ^{^^}xzke IHkk

the word ^{^^}xkao

shall be substituted.

21.

Amendment of Section 27.

- In Section 27 of the said Code, for the punctuation mark '.' the punctuation mark ':' shall be substituted and thereafter the following proviso shall be inserted, namely -

"Provided that no application under this section shall be entertained after the expiry of a period of thirty days from the date of the order sought to be revised."

22.

Amendment of Section 30.

- Section 30 of the said Code shall be re-numbered as sub-section (1) thereof and after sub-section (1) as so re-numbered, the following sub-section shall be inserted, namely -

"(2) The minjumla number shall be divided physically in the manner prescribed and revenue records including map and khasra shall be corrected accordingly."

23.

Amendment of Section 31.

(a)

Section 31 of the said Code, shall be re-numbered as sub-section (1) thereof;

(b)

in sub-section (1), as so re-numbered, -

(i)

in clause (b), for the words "respective interests" the words "respective interests including shares" shall be substituted;

(ii)

in Hindi version, in clause (b), for the words ^{^^} nkf;Roksa ;k 'krsZ]

the words ^{^^}nkf;Ro ;k 'krsZ]

shall be substituted;

(iii)

in clause (d), for the words "State Government, Gram Sabha" the words "State Government, Central Government, Gram Panchayat" shall be substituted.

(c)

after sub-section (1) as so re-numbered, the following sub-section shall be inserted, namely -

"(2) Shares of the co-tenureholders shall be determined in the manner prescribed."

24.

Amendment of Section 32.

- In Section 32 of the said Code -

(a)

in Hindi version, in sub-section (1), for the words ^{^^}leLr laO;ogkj

the words ^{^^}leLr laO;ogkjksa

shall be substituted;

(b)

at the end of sub-section (1), for the punctuation mark "." the punctuation mark ":" shall be substituted and thereafter the following proviso shall be inserted, namely -

"Provided that order for correction in map shall be passed by the Collector."

25.

Amendment of Section 33.

- In Section 33 of the said Code -

(a)

in sub-section (2), the clause (c) shall be re-numbered as sub-section (3) and in sub-section (3), as so re-numbered, for the words "under clause (a) or (b)" the words "under clause (a) or (b) of sub-section (2)" shall be substituted;

(b)

The existing sub-section (3) shall be re-numbered as sub-section (4).

26.

Amendment of Section 34.

- In Section 34 of the said Code -

(a)

in Hindi version, in the marginal heading, for the word [^]ekeys

the words [^]ekeyksa

shall be substituted;

(b)

the provision appearing before explanation shall be re-numbered as sub-section (1) and in the explanation the words "or an exchange of holdings or parts thereof" shall be omitted;

(c)

in Hindi version, in the explanation to sub-section (1), for the word [^]ifjokj

the word [^]ikfjokfjd

shall be substituted;

(d)

after explanation to sub-section (1), the following sub-section shall be inserted, namely -

"(2) State Government may fix a scale of fees for getting entry recorded in the record of rights on the basis of transfer. A fee in respect of any such entry shall be payable by the person in whose favour the entry is to be made."

27.

Amendment of Section 35.

- In Section 35 of the said Code -

(a)

in sub-section (1), -

(i)

clause (b) shall be omitted;

(ii)

for clause (c), the following clause shall be substituted, namely -

"(c) if the case is disputed, he shall decide the dispute and direct, if necessary, the record of rights (khatauni) to be amended accordingly."

(b)

for sub-section (2), the following sub-section shall be substituted, namely -

"(2) Any person aggrieved by an order of the Tahsildar under sub-section (1) may prefer an appeal to the Sub-Divisional Officer within a period of thirty days from the date of such order."

28.

Amendment of Section 36.

- In Section 36 of the said Code, in Hindi version, in sub-section (1), for the words [^]jftLV~hd`r djk;k x;k gS ;k djk;k x;k lek x;k gS

the words [^]jftLV~hd`r djk;k x;k gS

shall be substituted.

29.

Amendment of Section 38.

- In Section 38 of the said Code -

(a)

after sub-section (1) and before the Explanation, for sub-section (2), sub-section (3) and sub-section (4), the following sub-sections shall be substituted and inserted, namely -

"(2) On receiving an application under sub-section (1) or on any error or omission otherwise coming to his knowledge, the Tahsildar shall make such inquiry as may appear to him to be necessary, and refer the case along with his report to the Collector in the case of map correction and to the Sub-Divisional Officer in matter of other correction.

(3)

The case shall be decided by the Collector or the Sub-Divisional Officer, as the case may be, after considering any objection filed and evidence produced before him or before the Tahsildar.

(4)

Any person aggrieved by an order of the Collector or the Sub-Divisional Officer, as the case may be, under sub-section (3), may prefer an appeal to the Commissioner within a period of thirty days from the date of such order, and the decision of the Commissioner shall be final.

(5)

Any forged or manipulated entry in the map, the khasra or the record of rights (khatauni) may be expunged under this section.

(6)

Notwithstanding anything contained in other provisions of this Code, the Revenue Inspector may correct any undisputed error or omission in the record of rights (khatauni) or khasra in such manner and after making such inquiry, as may be prescribed."

(b)

in Hindi version, in the explanation, for the words "यसि दस ल/क" the words "यसि द ल/क" shall be substituted.

30.

Amendment of Section 39.

- In Section 39 of the said Code, for the words "subsection (2) of Section 35 or sub-section (4) of Section 38" the words "sub-section (4) of Section 38" shall be substituted.

31.

Amendment of Section 40.

- In Section 40 of the said Code, for the words "in the village map field book (Khasra) and record of rights (Khatauni)" the words "in the record of right (Khatauni)" shall be substituted.

32.

Amendment of Section 41.

- In Section 41 of the said Code -

(a)

in Hindi version, in sub-section (3), for the words "ल[कर्सनकसा दस नह त;A the words "ल[कर्सनकसा दस नह त; त्स बल्स फ;स वकोसु दसाA shall be substituted;

(b)

in Hindi version, for sub-section (4), the following section shall be substituted, namely -

"4 [कर्सनक फलकु ओह दस फ, ,सल एव; ,सल जहर लस हकखरकु दस दक मर्रनक;ह गक्सक] तलह फोफर दह त;A**.

(c)

in sub-section (6), the words "Only the original Kisan Bahi and not a duplicate shall be produced by a tenure holder to such institution for the purpose" shall be omitted;

(d)

in Hindi version, in sub-section (7), for the words "फलह व; जहर पक्स त्स हक गस] वर्रर फ;क गस

the words "the field book (Khasra) and the record of rights (Khatauni)" shall be substituted.

33.

Amendment of Section 43.

- In Section 43 of the said Code -

(a)

in Hindi version, in sub-section (1), for the words "the field book (Khasra) and the record of rights (Khatauni)" the words "the field book (Khasra) and the record of rights (Khatauni) or the record of abadi or village abadi" shall be substituted;

(b)

for sub-section (2), the following sub-section shall be inserted, namely -

"(2) The State Government may, by notification in the Gazette, order that a survey operation or a record operation of abadi or village abadi or both shall be made in the manner prescribed."

(c)

after sub-section (2), the following sub-section shall be inserted, namely -

"(3) The State Government may, by a subsequent notification, amend or cancel the notification issued under sub-section (1) or sub-section (2), or declare the operation to be closed."

34.

Amendment of Section 44.

- In Section 44 of the said Code -

(a)

in Hindi version, in sub-section (1), for the words "the field book (Khasra) and the record of rights (Khatauni)" the words "the field book (Khasra) and the record of rights (Khatauni) or the record of abadi or village abadi" shall be substituted;

the words "the field book (Khasra) and the record of rights (Khatauni) or the record of abadi or village abadi" shall be substituted;

shall be substituted;

(b)

in sub-section (2), for the words and figures "sub-section (1) of Section 43" the words and figures "sub-section (1) or sub-section (2) of Section 43" shall be substituted.

35.

Amendment of Section 45.

- In Section 45 of the said Code, in Hindi version, in the marginal heading, for the words "the field book (Khasra) and the record of rights (Khatauni)" the words "the field book (Khasra) and the record of rights (Khatauni) or the record of abadi or village abadi" shall be substituted.

36.

Amendment of Section 46.

- In Section 46 of the said Code, for the words "the record of rights (khatauni)" the words "the record of rights (khatauni) or the record of abadi or village abadi" shall be substituted.

37.

Amendment of Section 47.

- In Section 47 of the said Code, for the words "the field book (Khasra) and the record of rights (Khatauni)" the words "the field book (Khasra) and the record of rights (Khatauni) or the record of abadi or village abadi, as the case may be" shall be substituted.

38.

Amendment of Section 48.

- In Section 48 of the said Code, in Hindi version, for the words "the field book (Khasra) and the record of rights (Khatauni)" the words "the field book (Khasra) and the record of rights (Khatauni) or the record of abadi or village abadi, as the case may be" shall be substituted.

lhek fpUgksa

and for the words "the field book (Khasra) and the record of rights (Khatauni) or the record of abadi or village abadi, as the case may be" the words

xkaoksa vkSj {ks=ksa dh lhek vksa dks lhekafdr djus ds fy,

shall be substituted.

39.

Amendment of Section 49.

- In Section 49 of the said Code -

(a)

in Hindi version, -

(i)

in sub-section (2), for the words [^]xfYr;ksa
the words

=qfV;ksa

and for the words* [^]Hkwyksa vkSj fookn dk mYys[k
the words

Hkwyksa vkSj fooknksa dk mYys[k

shall be substituted.

(ii)

for sub-section (5), the following sub-section shall be substituted, namely -

[^]5 uk;c rglhynkj**.

[^]d tgka mi/kkjk 3 vkSj mi/kkjk 4 ds vuqlkj vkifRr;ka izLrqr dh tk;a] ogka lec) i{kdkjksa dks lquokbZ djus ds i'pkr vkSj**

[^][k fdlh vU; fLFkr esa] ,slh tkap djus ds i;pk] fts og vko';d les Hkwy dk lq/kkj djsxk vkSj vius le{k mifLFkr gksus okys
okys i{kdkjksa ds chp lekSrk jkjk fookn dk fuiVkj djsxk vkSj ,sls lekSrs ds vk/kkj ij vkns'k nsxkA**

(b)

in sub-section (8), for the words "may prefer an appeal to the Record Officer in the manner prescribed" the words "may prefer an appeal within thirty days from the date of such order to the Record Officer in the manner prescribed" shall be substituted.

40.

Amendment of Section 52.

- In Section 52 of the said Code -

(a)

the existing provision of Section 52 shall be re-numbered as sub-section (1);

(b)

in Hindi version, in sub-section (1), as so re-numbered, for the words [^]gksxsa

the words [^]gksaxs

shall be substituted.

(c)

after sub-section (1), as so re-numbered, the following sub-section shall be inserted, namely -

"(2) The provisions of this Chapter shall, mutatis mutandis, apply to record operation and survey operation of abadi or village abadi."

41.

Amendment of Section 53.

- In Section 53 of the said Code, in Hindi version, for the words [^]mi/kkfjr dh tk;sxh

the words [^]mi/kkfjr dh tk;saxh

shall be substituted.

42.

Amendment of Section 54.

- In Section 54 of the said Code, in Hindi version, for the words and punctuation mark [^]ty vkSj leLr] Hkwfe

the words

ty vkSj leLr Hkwfe

and in the proviso, for the words [^]ckr ls fdlh ,slh leifRr ij fuHkZj jgus okys fdlh O;fDr ds vf/kdkj bl lafgrk ds izkjEHk
gksus ds fnuakd ls rRdky iwoZ izHkkfor ugha les tk;saxs

the words

fdlh ckr ls] fdlh ,slh leifRr ij bl lafgrk ds izkjEHk gksus ds fnuakd ls Bhd igys] fojeku fdlh O;fDr ds vf/kdkj izHkkfor ugha les

tk;saxs

shall be substituted.

43.

Amendment of Section 55.

- In Section 55 of the said Code -

(a)

in Hindi version, in sub-section (1), for the words "fodkl vkSj fodkl"

the words "fodkl vkSj fodkl"

shall be substituted;

(b)

for sub-section (2), the following sub-section shall be substituted, namely -

"(2) Every lessee of building or land, leased or deemed to have been leased out by the State Government under any of the enactments repealed by this Code, for the purposes connected with the working or extraction of any mine or mineral, and operating on the date of commencement of this Code, shall, subject to the terms and conditions of the lease aforesaid, continue to retain possession thereof on payment of such rent as was in force on the date of such commencement".

44.

Amendment of Section 56.

- In Section 56 of the said Code, in Hindi version, -

(a)

in sub-section (1), for the words "ls O;fDr ls lEcU/kr lek tk,xk"

the words "ls O;fDr dk lekh tk,xk"

shall be substituted;

(b)

in sub-section (2), for the words "ls O;fDr;ksa ls la;qDr :i ls lEcU/kr lek tk,xk tks ,slh lhek ds izR;sd vkSj tksrksa dks /kkj.k djrs gks"

the words "ls O;fDr;ksa dk la;qDr :i ls lek tk,xk tks ,slh lhek ds fdlh vkSj tksrksa dks /kkj.k djrs gks"

shall be substituted;

(c)

in sub-section (4), for the words and punctuation marks "o`{kksa kM+ taxy] taxy ;k vU; izkd`frd mRikn tgka dgha mxs gks ;k vkjksfir gksa"

the words and punctuation marks "o`{kksa kM+] taxy] taxy ;k vU; izkd`frd mRikn tgka dgha mxs gks ;k vkjksfir gksa"

shall be substituted.

45.

Amendment of Section 57.

- In Section 57 of the said Code, in Hindi version, -

(a)

in sub-section (1), for the words "FkkfLFkfr fdlh rglhynkj ;k fdlh lgk;d ou laj{kd ;k fdlh lgk;d vfHk;Urk dh Js.kh"

the words "FkkfLFkfr rglhynkj ;k lgk;d ou laj{kd ;k lgk;d vfHk;Urk dh Js.kh"

shall be substituted;

(b)

in sub-section (1) and in sub-section (2), for the words "ugj ds izR;sd vkSj"

the words "ugj ds fdlh vkSj"

shall be substituted;

(c)

in sub-section (2), for the words "dksbZ O;fDr ;k dysDVj"

the words and punctuation marks "dksbZ O;fDr] dysDVj"

shall be substituted;

46.

Amendment of Section 58.

- In Section 58 of the said Code, in sub-section (2), for the figure and word "2 month" the words "thirty days" shall be

Amendment of Section 64.

- In Section 64 of the said Code -

(a)

in Hindi version, in sub-section (3), for the words "सुखी/कु सुखी 'क्रसिज /कफिर फ;क त,ख तसि फ फोफर फ;क त,अ the words and punctuation mark "सु,सि सुखी/कु सुखी 'क्रसिज /कफिर फ;क त,ख तसि फोफर ध त;साA shall be substituted;

(b)

at the end of sub-section (3), for the punctuation mark "." the punctuation mark ":" shall be substituted and thereafter the following proviso shall be inserted -

"Provided that if the allottee is a married man and his wife is alive, she shall be co-allottee of equal share in the land so allotted."

51.

Amendment of Section 65.

- In Section 65 of the said Code, in Hindi version, -

(a)

in sub-section (2), for the words "कुकुह द;क;स तुसु दसु इ'पुकर the words

सुन[कु द;क;स तुसु दसु इ'पुकर

and in the proviso, for the words "नुसु'कुह दसु

the words

वुहकु;कुदु दसु

shall be substituted;

(b)

in sub-section (3), -

(i)

for the words and figure "तुगुका मुदु मि/कुकु 2

the words and figure

तुगुका मि/कुकु

and for the words "कुिफुकि= ;क वु;फुकु }कुकु

the words

'कुिफुकि= }कुकु ;क वु;फुकु

shall be substituted;

(ii)

in clause (a) and clause (b), for the words "नुसु'कुह ओ;फुदु

the word "वुहकु;कुदु

shall be substituted;

(c)

in sub-section (4) and sub-section (5), for the words "नुसु'कुह ओ;फुदु

the word "वुहकु;कुदु

shall be substituted;

(d)

in sub-section (7), for the words "इकुकु eftLV~sV

the words "मि फुकु eftLV~sV

shall be substituted.

52.

Amendment of Section 66.

- In Section 66 of the said Code, in Hindi version, in sub-section (1), for the words and figure "दुसुदुवु लुइसु.कु लु सुखी /कुकु 64 दसु व/कुह फ;सु सु;सु हुकुवे दसु फुलु वकुावु }कुकु {कुकु/कु फुलु ओ;फुदु दसु वकुसुनु इ,सु वकुावु धु फोफर हुफर लु तकुपु दु लुदु गसु

the words and figure "दुसुदुवु /कुकु 64 दसु व/कुह फ;सु सु;सु हुकुवे दसु फुलु वकुावु धु फोफर हुफर लु तकुपु दु लुदु गसु सुखी ,सु वकुावु }कुकु {कुकु/कु फुलु ओ;फुदु दसु वकुसुनु इ,सु वकुावु धु फोफर हुफर धु तकुपु दुसुखु

shall be substituted.

53.

Amendment of Section 67.

- In Section 67 of the said Code -

(a)

for the words "Sub-Divisional Officer" wherever occurring, the words "Assistant Collector" shall be substituted;

(b)

for sub-section (2), the following sub-section shall be substituted, namely -

"(2) Where from the information received under sub-section (1) or otherwise, the Assistant Collector is satisfied that any property referred to in sub-section (1) has been damaged or misappropriated, or any person is in occupation of any land referred to in that sub-section in contravention of the provisions of this Code, he shall issue notice to the person concerned to show cause why compensation for damage, misappropriation or wrongful occupation not exceeding the amount specified in the notice be not recovered from him and why he should not be evicted from such land."

(c)

in Hindi version, -

(i)

in sub-section (3), for the words "अधिकारी" the words "असिस्टेंट कलेक्टर" shall be substituted;

the words "अधिकारी" shall be substituted;

shall be substituted;

(ii)

in sub-section (5), for the words "अधिकारी" the words "असिस्टेंट कलेक्टर" shall be substituted;

the words "अधिकारी" shall be substituted;

shall be substituted;

(iii)

in sub-section (6), for the words and punctuation mark "अधिकारी" the words and punctuation mark "असिस्टेंट कलेक्टर" shall be substituted;

the words and punctuation mark "अधिकारी" shall be substituted;

shall be substituted;

54.

Insertion of new Section 6

-A. - After Section 67 of the said Code, the following section shall be inserted, namely -

"67-A. Certain house sites to be settled with existing owners thereof-(I) If any person referred to in sub-section (1) of Section 64 has built a house on any land referred to in Section 63 of this Code, not being land reserved for any public purpose, and such house exists on the November 29, 2012, the site of such house shall be held by the owner of the house on such terms and conditions as may be prescribed.

(2)

Where any person referred to in sub-section (1) of Section 64, has built a house on any land held by a tenure holder (not being a government lessee) and such house exists on November 29, 2000, the site of such house, notwithstanding anything contained in this Code, be deemed to be settled with the owner of such house by the tenure holder on such terms and conditions as may be prescribed.

Explanation. - For the purpose of sub-section (2), a house existing on November 29, 2000, on any land held by a tenure holder, shall, unless the contrary is proved, be presumed to have been built by the occupant thereof and where the occupants are members of one family by the head of that family."

55.

Amendment of Section 69.

- In Section 69 of the said Code -

(a)

in Hindi version, -

(i)

in sub-section (3) in clause (a), for the words "अधिकारी" the word

the word

"असिस्टेंट कलेक्टर"

and in clause (c) for the words "लेकु मि;क्स्रक" the words "लेकु; मि;क्स्रक" shall be substituted.

(ii)
in sub-section (4), for the words "बल्ड्स इज्जिईह्क ग्कसुस ड्स रड्क्यीवोड लस्फर्दर खड्के फुफ्/क;कसा" the words "बल्ड्स इज्जिईह्क ग्कसुस ड्स रड्क्यीवोड फोलेकु ज्गुस ओक्य लस्फर्दर खकौ फुफ्/क;कसा" shall be substituted.

(b)
after sub-section (4), the following sub-section shall be inserted, namely -
"(5) The State Government may, by notification in the Gazette, direct that a Consolidated Gaon Fund shall be established also for each tahsil for the purpose and in the manner prescribed."

56.

Amendment of Section 70.

- In Section 70 of the said Code, in Hindi version, in sub-section (2), for the words and figure "ओस रड्क्यीव्कस'कसा ड्कस ड्क;कड्फुओर द्जसा व्कसज् मि/कक्क 1 ड्स व/कु त्कज् फ्द;स ख;स फुन्स'कसा ड्क वुक्कियु द्जसा" the words and figure "ओस रड्क्यीव्कस'कसा ड्कस ड्क;कड्फुओर द्जसा व्कसज् फुन्स'कसा ड्क वुक्कियु द्जसा" shall be substituted.

57.

Amendment of Section 71.

- In Section 71 of the said Code -

(a)
in Hindi version, in clause (a), for the words "{केक ;कपुक ड्स फुक" the words "इज्जिर्ग्सर्क ड्स फुक" shall be substituted;

(b)
in clause (c), for the punctuation mark "." the punctuation mark ":" shall be substituted and thereafter the following proviso shall be inserted, namely -
"Provided that reasonable opportunity of hearing shall be given to the Bhumi Prabandhak Samiti before issuing any direction under this section."

(c)
in Hindi version, at the end of Section 71 for the words "तस्लक फ्द फोफ्ग् र्द;क त्क;" the words "फुत्उग्सा फ्द फोफुन्ड'व् र्द;क त्क;अ" shall be substituted.

58.

Amendment of Section 72.

- In Section 72 of the said Code -

(a)
in sub-section (1), -

(i)
in Hindi version, for the word "फुकडु/कु" the word "फुकु/कु" shall be substituted;

(ii)
in clause (a), for the words "one Standing Counsel (Revenue)" the words "one or more Standing Counsel (Revenue)" shall be substituted;

(iii)
in clause (b), for the words "one Standing Counsel (Revenue)" the words "one or more Standing Counsel (Revenue)" shall be substituted;

(iv)

in clause (c), for the words and punctuation marks "one Divisional Government Counsel (Revenue) for the divisional headquarters; and" the words and punctuation marks "one or more Divisional Government Counsel (Revenue) for the divisional headquarters; and" shall be substituted;

(v)

in clause (d), for the words "one District Government Counsel (Revenue) for the district headquarters" the words "one District Government Counsel (Revenue) and one or more Additional District Government Counsel (Revenue) for the district headquarters" shall be substituted;

(b)

in Hindi version, in sub-section (2), for the words [^]fucZU/ku vkSj 'krksZ

the words

fucU/ku vkSj 'krksZ

and for the word [^]tSlk

the word

tSlh

shall be substituted;

(c)

in sub-section (4), for the words "Gram Sabha, Panchayat or Bhumi Prabandhak Samiti" the words "Gram Sabha, Gram Panchayat or Bhumi Prabandhak Samiti" shall be substituted;

(d)

in Hindi version, in sub-section (5), for the words [^]fof/k O;olk;h }kjk

the words [^]fdlh fof/k O;olk;h }kjk nkf[ky

shall be substituted;

(e)

after sub-section (6), the following sub-section shall be inserted, namely -

"(7) The State Government may, by notification in the Gazette, issue any difection, for monitoring of cases filed by or against Gram Panchayat, Gram Sabha or Bhumi Prabandhak Samiti and for performance based annual appraisal of Panel Advocates appointed under this Code or the enactments repealed by it, and also for appointing any law officer for the aforesaid purpose."

59.

Amendment of Section 76.

- In Section 76 of the said Code -

(a)

in sub-section (1), -

(i)

for clause (c) and clause (d), the following clauses shall be substituted, namely -

"(c) every person who is allotted any land on or after the said date under the provisions of the Uttara Pradesh Bhoodan Yojna Act, 1952;

(d)

every person who is allotted any land on or after the said date under the provisions of the Uttar Pradesh Imposition of Ceiling on Land Holdings Act, 1960;"

(ii)

after clause (d), the following clause shall be inserted, namely -

"(dd) every person who was an asami in possession of land not covered by Section 77 of this Code, immediately before the date of the commencement of this Code and had been recorded as such in Class 3 of the annual register (khatauni) of 1407 Fasli:

Provided that where the land in possession of a person, together with any other land, held by him in Uttar Pradesh exceeds the ceiling area determined under the Uttar Pradesh Imposition of Ceiling on Land Holdings Act, 1960, the rights of a Bhumidhar with non-transferable rights shall accrue in favour of such person in respect of so much area of the first mentioned land, as together with such other land held by him, does not exceed the ceiling area applicable to him, and the said area shall be demarcated in the prescribed manner in accordance with the principles laid down in the aforesaid Act;"

(b)

in sub-section (2), for the words "ten years" the words "five years" shall be substituted;

(c)

in Hindi version, for sub-section (3), the following sub-section shall be substituted, namely -

" ^3 izR;sd O;fDr tks mi/kkj 1 vkSj 2 esa fufnZ'V izkjEHk ij vladze.kh; vf/kdkj okyk Hkwfe/kj gks ;k ,sls izkjEHk ds i'pkr vladze.kh; vf/kdkj okyk Hkwfe/kj gks tkrk gS] vladze.kh; vf/kdkj okyk Hkwfe/kj gksus ls ikap o'kZ dh vof/k dh lekflr ij ladze.kh; vf/kdkj okyk Hkwfe/kj gks tk,xkA**

(d)

in sub-section (4), -

(i)

for the words and figures "under sub-section (1) or sub-section (2) or subsection (3)" the words and figures "under sub-section (2) or sub-section (3)" shall be substituted;

(ii)

in Hindi version, for the words and figure ^tksr vkjksi.k vf/kfu;e] 1960

the words and figure ^tksr lhek vkjksi.k vf/kfu;e 1960

shall be substituted.

60.

Amendment of Section 77.

- In Section 77 of the said Code -

(a)

the existing provision shall be re-numbered as sub-section (1);

(b)

in Hindi version, in sub-section (1), as so renumbered, in clause (f) and clause (g), for the words ^fdlh vU; izkf/kdkjh

the words ^fdlh vU; LFkkuh; izkf/kdkjh

shall be substituted;

(c)

the proviso to sub-section (1), as so renumbered, shall be omitted and after explanation, the following sub-sections shall be inserted, namely -

"(2) Notwithstanding anything to the contrary contained in other provisions of this Code, where, any land or part thereof specified in sub-section (1) of this section is, surrounded by or, in between, the plot or plots of land purchased, acquired or resumed for public purpose, the State Government may, change the class of such public utility land, and if the class of such public utility land is changed, any other land equivalent or more than that of public utility land aforesaid, shall be reserved for the same purpose in the same Gram Panchayat or other local authority, as the case may be or State Government may permit the exchange thereof under Section 101 of this Code, in the manner prescribed:

Provided that the class of any public utility land may be changed only in exceptional cases on such terms and conditions, as may be prescribed. The reason for changing the class of public utility land shall be recorded in writing.

(3)

The State Government, while changing the class of the land or permitting the exchange of the same under Section 101 of the Code, shall consider the location, public utility and suitability of the land proposed to be reserved or exchanged.

(4)

If class of land is changed under sub-section (2) of this section, the Collector shall order the record of rights (Khatauni) and the map to be corrected accordingly.

Explanation. - The expression 'public purpose', in sub-section (2) of this section means, mutatis mutandis, 'the public purpose' as defined in clause (za) of Section 3 of Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (Act No. 30 of 2013)."

61.

Amendment of Section 78.

- In Section 78 of the said Code -

(a)

for clause (a), the following clause shall be substituted, namely -

"(a) subject to the provisions of clause (dd) of sub-section (1) of Section 76 of this Code, every person who was an

asami immediately before the date of commencement of this Code;"

(b)
in Hindi version, in clause (b), for the words "लोकह दस ईसा दसबड हकवे लोहदक ध ख;ह गकस
the words "लोकह लोहदक द;क ख;क गकस
shall be substituted.

62.

Amendment of Section 80.

- In Section 80 of the said Code -

(a)
for the heading and sub-section (1), the following sub-section shall be substituted, namely -

"80. Use of holding for Industrial, Commercial or Residential purpose - (1) Where a Bhumidhar with transferable rights uses his holding or part thereof, for industrial, commercial or residential purposes, the Sub-Divisional Officer may, suo moth or on an application moved by such Bhumidhar, after making such enquiry as may be prescribed, either make a declaration that the land is being used for the purpose not connected with agriculture or reject the application. The Sub-Divisional Officer shall state the reasons in writing of such declaration or rejection and inform the applicant of this decision within forty-five working days from the date of receipt of the application:

Provided that no such declaration under this section shall be made merely on the ground that the holding or part thereof is surrounded by boundary wall or is "Parti" on the spot:

Provided further that no application for the declaration under this sub-section moved by any co-bhumidhar having undivided interest in Bhumidhari land shall be maintainable, unless application is moved by all the co-bhumidhars of such bhumidhari land or their interests therein are divided in accordance with provisions of law."

(b)
in Hindi version, in sub-section (4), for the words "लोकडतुद मरकर
the words "लोकडतुद उ;वसुल
shall be substituted;

(c)
after sub-section (4), the following sub-section shall be inserted, namely -

"(5) The State Government may fix the scale of fees for declaration under this section and different fees may be fixed for different purposes:

Provided that if the applicant uses the holding or part thereof for his own residential purpose, no fee shall be charged for the declaration under this section."

63.

Amendment of Section 81.

- In Section 81 of the said Code -

(a)
in Hindi version, for the words and punctuation mark "ई.के. लकुफ'प्र द;स त;सखसA
the words and punctuation mark "ई.के. गकसखस%
shall be substituted;

(b)
at the end of clause (a), for the punctuation mark "." the punctuation mark ";" shall be substituted;

(c)
in Hindi version, in clause (b), for the words
व;क; उकस
the words
व;क; ख;कग
, for the words द'फ'क "द'फ'क ओख
the words
द'फ'क ओ'क
and for the word
फनुअकद
the word "फनुअकद

shall be substituted.

64.

Amendment of Section 82.

- In Section 82 of the said Code -

(a)

in sub-section (1), for the words "any purpose other than a purpose connected with agriculture," the words "any purpose connected with agriculture," shall be substituted;

(b)

in Hindi version, in sub-section (2), -

(i)

in proviso to clause (b), for the word [^]iufuZ/kkfjr

the word [^]iufuZ/kkZfjr

shall be substituted;

(ii)

in clause (c), for the words [^]bl lafonk ds micU/kksa

the words [^]bl lafgrk ds micU/kksa

shall be substituted;

(iii)

in proviso to clause (c), for the words [^]izfrHkwfr ns;

the words [^]ns; ,oa izfrHkwr

shall be substituted.

65.

Amendment of Section 83.

- For Section 83 of the said Code, the following section shall be substituted, namely -

"83. Every declaration under Section 80 or cancellation under Section 82 shall be recorded in record of rights in the manner as may be prescribed and, even after declaration under Section 80, the mutation order on the basis of transfer or succession shall be passed in the manner prescribed."

66.

Amendment of Section 84.

- In Section 84 of the said Code, in Hindi version, in the proviso, for the words [^]VkSfx;k ckxku

the words [^]VkSafx;k ckxku

shall be substituted.

67.

Amendment of Section 85.

- In Section 85 of the said Code, in Hindi version, -

(a)

in sub-section (1), for the words [^]okn ds vk/kkj ij

the words [^]okn ij

shall be substituted;

(b)

in sub-section (2), for the words [^]bl lafgrk fdlh

the words

bl lafgrk ds fdlh

and for the words [^]okn ds vk/kkj ij

the words

okn ij

shall be substituted;

(c)

in sub-section (3), for the words [^]dk;Z ds ykxr

the words

dk;Z dh ykxr

and for the word {kfr;ksa
the word
{kfr
shall be substituted.
68.

Amendment of Section 89.

- In Section 89 of the said Code -

(a)

for sub-section (2), the following sub-section shall be substituted, namely -

"(2) Subject to the provisions of sub-section (3), no person shall have the right to acquire by purchase or gift any holding or part thereof from a bhumidhar with transferable rights, where the transferee shall, as a result of such acquisition, become entitled to land which together with land, if any, held by such transferee and where the transferee is a natural person, also together with land, if any, held by his family shall exceed 5.0586 hectares in Uttar Pradesh."

(b)

in Hindi version, in sub-section (3), for the words ^vU; fuxe] f'k{k.k laLFkk
the words ^vU; fuxe ;k f'k{k.k laLFkk
shall be substituted.

69.

Amendment of Section 90.

- In Section 90 of the said Code, in Hindi version, for the words ^jhfr esa
the words ^jhfr ls
shall be substituted.

70.

Amendment of Section 92.

- In Section 92 of the said Code -

(a)

in the marginal heading, for the words 'Mortgage and gift of land by bhumidhar with non-transferable rights' the words "Mortgage of land by bhumidhar with nontransferable rights" shall be substituted;

(b)

in Hindi version, in clause (a), for the words ^,slh ljdkj }kjk LokfeRok/khu ,oa fu;af=r
the words ^,slh ljdkj ds LokfeRok/khu ,oa fu;a=.kk/khu
shall be substituted.

71.

Amendment of Section 94.

- In Section 94 of the said Code, in Hindi version, in clause (b), for the words ^d`f'k esa izf'k{k.k nsus okys
the words ^d`f'k esa izf'k{k.k nsus okyh
shall be substituted.

72.

Amendment of Section 95.

- In Section 95 of the said Code, in sub-section (1), -

(a)

in Hindi version, -

(i)

for the words ^fdlh xzke lHkk ls izklr Hkwfe /kkj.k djus okyk dksbZ Hkwfe/kj ;k vlkeh
the words ^dksbZ Hkwfe/kj ;k xkze iapk;r ls izklr Hkwfe /kkj.k djus okyk dksbZ vlkeh
shall be substituted;

(ii)

in clause (e), for the words and punctuation marks ^;k vius ifr ds lEcU/k;ksa dh dzwjrk ds dkj.k i`Fkd ls jg jgh gks ;k mldk ifr oxZ d] [k] oxZ N ;k oxZ t dk gks]
the words and punctuation marks ^;k vius ifr ;k vius ifr ds lEcU/k;ksa dh dzwjrk ds dkj.k i`Fkd~ jg jgh gks ;k mldk ifr oxZ d] oxZ [k] oxZ N ;k oxZ t dk gks

shall be substituted;

(b)

in clause (g), for the words and figure "a person below 25 years in age" the words "a person below 35 years in age" shall be substituted;

(c)

in Hindi version, for clause (h), the following clause shall be substituted, namely - [^]t Hkkjr ljdkj dh Fky lsuk] ukSlsuk dk ok;q lsuk lECU/kh lsok esa lsokjr dksbZ O;fDr ;k mlds lkFk jg jgh mldh iRuh ;k mlds lkFk jg jgk mldk ifrj**.

(d)

for clause (i), the following clause shall be substituted, namely -

"(i) any other person who is unable to cultivate his holding for the reasons prescribed;"

73.

Amendment of Section 96.

- In Section 96 of the said Code, in Hindi version, -

(a)

in sub-section (1), for the word [^]fu%'kDrkvksa

the word [^]fu%'kDrrkvksa

shall be substituted;

(b)

in sub-section (2), for the words [^],slk vka'k/kkj d

the words [^],slk vlkeh ;k lgva'k/kkj d

shall be substituted.

74.

Amendment of Section 97.

- In Section 97 of the said Code, in Hindi version, -

(a)

for the words [^]iV~Vk ;k ds jftLV~hd`r

the words [^]iV~Vk] jftLV~hd`r

shall be substituted;

(b)

in explanation, for the words [^]vuqiky ugha djrk gS bl v/;k; ds micU/kksa ds mYya?ku esa bl dkj.k ls

the words [^]vuqiky ugha djrk gS bl dkj.k ls bl v/;k; ds micU/kksa ds mYya?ku esa

shall be substituted.

75.

Amendment of Section 98.

- For the Section 98 of the said Code, the following section shall be substituted, namely -

"98. (1) Without prejudice to the provisions of this Chapter, no bhumidhar belonging to a scheduled caste shall have the right to transfer, by way of sale, gift, mortgage or lease any land to a person not belonging to a scheduled caste, except with the previous permission of the Collector in writing:

Provided that the permission by the Collector may be granted only when -

(a)

the bhumidhar belonging to a scheduled caste has no surviving heir specified in clause (a) of sub-section (2) of Section 108 or clause (a) of Section 110, as the case may be; or

(b)

the bhumidhar belonging to a scheduled caste has settled or is ordinarily residing in the district other than that in which the land proposed to be transferred is situate or in any other State for the purpose of any service or any trade, occupation, profession or business; or

(c)

the Collector is, for the reasons prescribed, satisfied that it is necessary to grant the permission for transfer of land.

(2)

For the purposes of granting permission under this section the Collector may make such inquiry as may be prescribed."

76.

Amendment of Section 99.

- In Section 99 of the said Code, in Hindi version, for the words and punctuation mark "नकु ;क इव~वसन्कjh the words and punctuation marks "नकु] कउ/कद ;क इव~वक shall be substituted.

77.

Amendment of Section 101.

- For Section 101 of the said Code, the following section shall be substituted, namely -

"101. (1) Notwithstanding anything in Section 77 of this Code, any bhumidhar may with prior permission in writing of the Sub-Divisional Officer exchange his land with the land -

- (a) held by another bhumidhar; or
- (b) entrusted or deemed to be entrusted to any Gram Panchayat or a local authority under Section 59.

(2)

The Sub-Divisional Officer shall refuse permission under sub-section (1) in the following cases, namely -

- (a) if the exchange is not necessary for the consolidation of holdings or securing convenience in cultivation; or
- (b) if the difference between the valuation, determined in the manner prescribed, of the lands given and received in exchange exceeds ten per cent of the lower valuation; or
- (c) if the difference between the areas of the land given and received in exchange exceeds twenty-five per cent of the lesser area; or
- (d) in the case of land referred to in clause (b) of sub-section (1), if it is reserved for planned use, or is land in which bhumidhari rights do not accrue; or
- (e) if the land is not located in same or adjacent village of the same tahsil: Provided that the State Government may permit the exchange with land mentioned in clause (d) aforesaid, on the conditions and in the manner, prescribed.

(3)

Nothing in this section shall be deemed to empower any person to exchange his undivided interest in any holding, except where such exchange is in between two or more co-sharers.

(4)

Nothing in the Registration Act, 1908 (Act No. 16 of 1908), shall apply to an exchange in accordance with this section."

78.

Amendment of Section 102.

- In Section 102 of the said Code, in Hindi version, in clause (a), for the word "इकडकjs the word "इकडकjsa and in clause (b), for the words "व/कडकjsa दs व/हकys[kksa [krkSuh the words "व/कडक] व/हकys[k [krkSuh shall be substituted.

79.

Amendment of Section 103.

- In Section 103 of the said Code -

- (a) in Hindi version, for the words "तगका रद /ककjk the words "तगका /ककjk and for the words "गक्स रक्स ओगका

the words

gks ogka

shall be substituted;

(b)

in clause (a) and in clause (b) for the figure and word "5.04 hectares" the figures and word "5.0586 hectares" shall be substituted.

80.

Amendment of Section 104.

- For Section 104 of the said Code, in Hindi version, the following section shall be substituted, namely -

^104- /kkjk 103 esa ;Fkk micaf/kr ds flok; fdlh Hkwfe/kj ;k fdlh vlkeh }kkj fdlh tksr ;k mlds Hkkx esa vius fgr dk fd;k x;k izR;sd vUrj.k] tks bl lafgrk ds micU/kksa ds mYya?ku esa gks] 'kwU; gksxkA**

81.

Amendment of Section 105.

- In Section 105 of the said Code - (a) in Hindi version, in sub-section (1), -

(i)

for the words ^fuEufyf[kr ifj.kkeksa ls ;g lqfuf'pr fd;k tk;sxk

the words ^fuEufyf[kr ifj.kke gksaxs

shall be substituted;

(ii)

for clause (a), the following clause shall be substituted, namely - ^d ,sls varj.k dh fo'k;oLrq IHkh Hkkjksa ls eqDr gksdj jkT; ljdkj esa fufgr gks tk;sxh]**.

(iii)

in clause (b), for the words and punctuation marks ^dqavk vkSj vU; lq/kkjsa dks] IHkh Hkkj ls eqDr] jkT; ljdkj esa fufgr lekk tk,xk

the words and punctuation marks ^dqa;s vkSj vU; lq/kkj IHkh Hkkjksa ls eqDr gksdj] jkT; ljdkj esa fufgr gks tk;saxs

shall be substituted;

(iv)

in clause (d), for the words ^varfjrh ds fgr ds fuokZiu

the words ^varjd ds fgr dh lekflr

shall be substituted.

(b)

in sub-section (1), at the end of clause (d), for the punctuation mark "," the punctuation mark "." shall be substituted;

(c)

in Hindi version, in sub-section (2), for the words and punctuation marks ^,slh Hkwfe vkSj IEifRr dk dCtk ysuk fof/kIEer gksxk vkSj og fdlh ,sls O;fDr dks] ftldk ml ij v;klu gks] cs[n[ky gksus okyh ,slh Hkwfe ;k IEifRr ds dCts dk funs'k ns ldrk gS

the words and punctuation marks ^dysDVj ds fy;s ,slh Hkwfe ;k IEifRr dk dCtk ysuk vkSj ,sls O;fDr dks ftldk ,slh Hkwfe ;k IEifRr ij v;klu gks] dks mlls cs[n[ky djus dk funs'k nsuk fof/kIEer gksxk

shall be substituted.

82.

Insertion of heading after Section 106 and before Section 107 of the Code.

- After Section 106 and before Section 107 of the said Code, in Hindi version, the heading ^U;kxeu** shall be inserted.

83.

Amendment of Section 108.

- For Section 108 including marginal heading of the said Code, the following section shall be substituted, namely -

"108. General order of succession to male bhumidhar, asami or government lessee - (1) Subject to the provisions of Section 107, where a bhumidhar, asami or Government lessee, being a male dies, his interest in his holding shall devolve upon his heirs being the relatives specified in sub-section (2) in accordance with the following principles, namely

-

(i)

the heirs specified in any one clause of sub-section (2) shall take simultaneously in equal shares;

(ii)

the heirs specified in any preceding clause of sub-section (2) shall take to the exclusion of all heirs specified in succeeding clauses, that is to say, those in clause (a) shall be preferred to those in clause (b), those in clause (b) shall be preferred to those in clause (c) and so on, in succession;

(iii)

if there are more widows than one, of the bhumidhar, asami or government lessee, or of any predeceased male lineal descendant, who would have been an heir, if alive, all such widows together shall take one share;

(iv)

the widow or widowed mother or the father's widowed mother or the widow of any predeceased male lineal descendant who would have been an heir, if alive, shall inherit only if she has not remarried.

(2)

The following relatives of the male bhumidhar, asami or government lessee are heirs, subject to the provisions of sub-section (1), namely -

(a)

widow, unmarried daughter and the male lineal descendants in the male line of descent per stirpes:

Provided that the widow and the son of a predeceased son how low-so-ever shall inherit per stirpes the share which would have devolved upon the predeceased son had he been alive;

(b)

mother and father;

(c)

married daughter;

(d)

brother and unmarried sister being respectively the son and the daughter of the same father as the deceased, and son of predeceased brother, the predeceased brother having been the son of the same father as the deceased;

(e)

son's daughter;

(f)

father's mother and father's father;

(g)

daughter's son;

(h)

married sister;

(i)

half sister, being the daughter of the same father as the deceased;

(j)

sister's son;

(k)

half sister's son, the sister having been the daughter of the same father as the deceased;

(1)

brother's son's son;

(m)

father's father's son;

(n)

father's father's son's son;

(o)

mother's mother's son."

84.

Amendment of Section 109.

- In Section 109 of the said Code -

(a)

in Hindi version, for the words "fdlh iq:k Hkwfe/kj vlkeh ;k fdlh tksr esa ljdkjh iV~Vsnkj

the words

fdlh tksr esa iq:'k Hkwfe/kj] vlkeh ;k ljdkjh iV~Vsnkj
and for the words
,slh L=h dh ,sls izkjEHk gksus ds iwoZ e`R;q gks tko]
the words
,slh L=h dh ,sls izkjEHk gksus ds i'pkr~ e`R;q gks tk;]
for the word ^iquZfookg
the words
iqufoZokg
and for the word
gksrk
the words
gksxk
shall be substituted;

(b)

after explanation, the following proviso shall be inserted, namely -

"Provided that if any woman inheriting as a daughter, who has surviving heirs specified in clause (a) of Section 110 of this Code, dies, her interest in the holding shall devolve upon heirs specified in clause (a) of Section 110."

85.

Amendment of Section 110.

- In Section 110 of the said Code -

(a)

in Hindi version, in the marginal heading, for the words ^Hkw/kkj d k mRrj k f/k d k j h
the words ^Hkw/kkj d k mRrj k f/k d k j
shall be substituted;

(b)

for clause (a), the following clause shall be substituted, namely -

"(a) son, unmarried daughter, son's son, son's son's son, predeceased son's widow, and predeceased son's predeceased son's widow, in equal shares per stirpes:

Provided firstly that the nearer shall exclude the remoter in the same branch: Provided secondly that a widow who has remarried, shall be excluded;

(c)

in clause (c), the words "unmarried daughter;" shall be omitted;

(d)

in Hindi version, in clause (h), for the words ^vkSj izfr 'kk[kk vuqlkj Hk kbZ d k i q=
the words ^vkSj Hk kbZ d k i q= izfr 'kk[kk vuqlkj
shall be substituted.

86.

Amendment of Section 111.

- In Section 111 of the said Code, in Hindi version, for the words ^fMcVj IEifRr
the words

nsoksRrj IEifRr

and for the words ^,sls oS;fDrd ;k vU; fof/k;ksa }kjk 'kkflr gksrk jgsxk] tks ml ij ykxw gksrs gks
the words

,slh oS;fDrd ;k vU; fof/k;ksa }kjk 'kkflr gksrk jgsxk] tks ml ij ykxw gksrh gks
shall be substituted.

87.

Amendment of Section 112.

- In Section 112 of the said Code, in Hindi version, in sub-section (1), for the words ^izklr djs
the words

izklr djs

and for the words ^lgfof/kok;sa dks

the words

lgfof/kokvksa dks

shall be substituted.

88.

Amendment of Section 113.

- In Section 113 of the said Code, in Hindi version, for the words [^]Hkwfe dk vtZu ;k mlesa fdlh fgr dk gdnkj gksxkA the words [^]Hkwfe ;k mlesa fdlh fgr ds vtZu dk gdnkj gksxkA shall be substituted.

89.

Amendment of Section 114.

- In Section 114 of the said Code -

(a)

in clause (a), clause (c) and clause (d), for the words "bhumidhar or asami" the words "bhumidhar, asami or government lessee" shall be substituted;

(b)

in Hindi version, -

(i)

in clause (b), for the word [^]ik;

the word [^]ik;s

shall be substituted;

(ii)

in clause (c), for the word and punctuation mark [^]tk,xkA

the word and punctuation mark [^]tk,xk]

shall be substituted.

(c)

for the explanation, the following explanation shall be substituted, namely - "Explanation. - In this section, the expression 'murder' means any offence punishable under Section 302, Section 304, Section 304-B, Section 305 or Section 306 of the Indian Penal Code.".

90.

Amendment of Section 115.

- In Section 115 of the said Code, in Hindi version, -

(a)

in sub-section (1), for the words [^]Hkwfe/kj ;k xzke lHkk ls izklr Hkwfe dks /k`r djus okys fdlh vlkeh dh Kkr mRrjkf/kdkj the words <sup>^</sup>Hkwfe/kj ;k xzke iapk;r ls izklr Hkwfe dks /k`r djus okys fdlh vlkeh dh Kkr mRrjkf/kdkjh

shall be substituted;

(b)

in sub-section (2), for the words [^]ds fucU/ku vkSj 'krsZ

the words [^]dh fucU/ku vkSj 'krsZ

shall be substituted;

(c)

in sub-section (4), for the words [^]vius vf/kdkj

the word [^]vius vf/kdkjksa

shall be substituted;

(d)

in sub-section (6), in clause (c), for the words [^]vfUre fuLrkj.k

the word [^]vfUre [kkfjtk

shall be substituted.

91.

Amendment of Section 116.

- In Section 116 of the said Code, for sub-section (2), the following sub-section shall be substituted, namely -

"(2) In every such suit, the Court may also divide the trees, wells and other improvements existing on such holding but

Page 28/42

shall be substituted.

97.

Amendment of Section 124.

- In Section 124 of the said Code, in Hindi version, in sub-section (2), for the words and figure [^]mi/kkj 2 fdh the words and figure [^]mi/kkj 2 ds vUrxZr fdh shall be substituted.

98.

Insertion of heading after Section 124 and before Section 125 of the Code.

- After Section 124 and before Section 125 of the said Code, in Hindi version, the heading [^]xzke iapk;r }kjk Hkwfe dk iV~Vk** shall be inserted.

99.

Amendment of Section 125.

- In Section 125 of the said Code, in Hindi version, for the words and punctuation mark [^]Hkwfe izcU/kd lfevr] xzke lHkk }kjk the words [^]Hkwfe izcU/kd lfevr] }kjk shall be substituted.

100.

Amendment of Section 126.

- In Section 126 of the said Code -

(a)

in Hindi version, in the marginal heading, for the words [^]Hkwfe izcU/k lfevr the words [^]Hkwfe izcU/kd lfevr shall be substituted;

(b)

in Hindi version, in sub-section (1), -

(i)

for the words and figures [^]fdh O;fDr dks vladze.kh; vf/kdkj okys Hkwfe/kj ds :i esa ;k /kkj 125 ds v/khu vlkeh ds :i esa the words and figures [^]/kkj 125 ds v/khu fdh O;fDr dks vladze.kh; vf/kdkj okys Hkwfe/kj ds :i esa ;k vlkeh ds :i esa shall be substituted;

(ii)

in clause (a), for the words [^]ldz; lsok esa jgrs gq, 'k=q dh dk;Zokgh ls e`R;q gqbZ gks] fo/kok] iq=] vfoofgr iqf=k; the words <sup>^</sup>ldz; lsok esa jgrs gq, e`R;q gqbZ gks] fo/kok] iq=] vfoofgr iqf=k; shall be substituted;

(iii)

in clause (b), for the words [^]ldz; lsok esa jgrs gq, 'k=q dh dk;Zokgh esa iw.kZr;k fodykax gks x;k gks the words [^]ldz; lsok esa jgrs gq, iw.kZr;k fodykax gks x;k gks shall be substituted;

(iv)

in clause (h), for the words and figures [^]la;qDr izkUr iapk;r jkt vf/kfu;e] 1947 the words and figures [^]mRj izns'k iapk;r jkt vf/kfu;e] 1947 1947 dh vf/kfu;e la[k 26 shall be substituted.

(c)

in explanation to sub-section (1), -

(i)

in Hindi version, at the end of clause (i), clause (iii) and clause (v), for the punctuation mark "I" the punctuation mark ";;" shall be substituted;

(ii)

clause (ii), shall be omitted;

(iii)

in Hindi version, in clause (iii), for the words [^]vkoaVu ds fnuakd dh ;k mDr fnuakd dks Bhd iwoZorhZ nks o'kZ the words [^]vkoaVu ds fnuakd dks ;k mDr fnuakd dks Bhd iwoZorhZ nks o'kZ

shall be substituted;

(iv)
at the end of clause (iv), for the punctuation mark "." the punctuation mark ";" shall be substituted;

(v)
in Hindi version, in clause (v), for the words and figures [^]vf/kfu;e 1994 dh vuqlwph1
the words and figures [^]vf/kfu;e] 1994 vf/kfu;e la[k 4 lu~ 1994 dh vuqlwph1
shall be substituted.

(d)
in Hindi version, in sub-section (2), for the words [^]ls de gks
the words [^]ls vf/kd u gks
shall be substituted.

101.

Amendment of Section 127.

- In Section 127 of the said Code -

(a)
in Hindi version, in sub-section (1), for the words [^],sls o`k ;k lq/kkj dh Hkwfe lfr IEC) O;fDr dks vkoafVr fd;k x;k lek tk;xk
the word [^],sls o`k ;k lq/kkj Hkh ml Hkwfe ds lkFk IEC) O;fDr dks vkoafVr fd;k x;k lek tk,xkA
shall be substituted;

(b)
at the end of sub-section (2), for the punctuation mark "." The punctuation mark ":" shall be substituted and thereafter the following proviso shall be inserted, namely -

"Provided that if the allottee is a married man and his wife is alive, she shall be co-allottee of equal share in the land so allotted."

102.

Amendment of Section 128.

- In Section 128 of the said Code -

(a)
in Hindi version, in sub-section (1), for the words and punctuation marks ":-" the words and punctuation marks [^]dysDVj fdlh vkoaVu ds lECU/k esa] fofgr jhfr ls] Lor% tka dj ldrk gS vkSj fdlh O;fFkr O;fDr ds vkosnu ij tka djsxk] vkSj ;fn mldk lek/kku gks tk; fd vkoaVu bl lafgrk ds v/khu cuk;s x;s fu;eksa ds micU/kksa ;k bl lafgrk jkjk fujlR vf/kfu;fevr;ksa esa ls fdlh ,d ds mYya?ku esa gS rks og] vkoaVu vkSj iV~Vk dh] ;fn dksbZ gks]
the words and punctuation marks [^]dysDVj] fdlh vkoaVu ds lECU/k esa] fofgr jhfr ls] Loizsj.kk ls tka dj ldrk vkSj fdlh O;fFkr O;fDr ds vkosnu ij tka djsxk vkSj ;fn mldk lek/kku gks tk; fd vkoaVu bl lafgrk ;k bl lafgrk jkjk fujlR fdUgha vf/kfu;fevr;ksa ;k mlds v/khu cuk;s x;s fu;eksa ds micU/kksa ds mYya?ku esa gS rks og] vkoaVu vkSj iV~Vk] ;fn dksbZ gks] dks fujlR dj ldrk gSA
shall be substituted;

(b)
in sub-section (1), clause (a) and clause (b), shall be omitted;

(c)
after sub-section (1), the following sub-section shall be inserted, namely -
"(1-A) Any application under sub-section (1) may be moved in the case of an allotment of land made before the commencement of this Code, within five years from the date of such commencement and in the case of an allotment of land made on or after the date of such commencement, within five years from the date of such allotment or lease."

(d)
in Hindi version, in sub-section (2), -

(i)
for the words [^]fujlR fd;k tk,
the words [^]fujlR fd;k tk,
shall be substituted;

(ii)

in clause (a), for the words ^,slh Hkwfe esa vkSj mlds fo|eku izR;sd o`k the words
^,slh Hkwfe esa vkSj ml ij fo|eku izR;sd o`k
and for the word and punctuation mark ^tk;saxs
the word and punctuation mark
tk;saxs]

shall be substituted;

(e)

in Hindi version, in sub-section (3), for the word ^tk;xk
the word ^tk;sxk
shall be substituted.

103.

Amendment of Section 129.

- In Section 129 of the said Code, in Hindi version, in sub-section (1), for the words ^Loizjs.kk ls
the words ^Loizsj.kk ls vkoafVrh ;k iV~Vsnkj dks dCtk fnyk ldrk gS
shall be substituted.

104.

Insertion of heading before Section 130 of the Code.

- After Section 129 and before Section 130 of the said Code, in Hindi version, the heading ^csn[kyh** shall be inserted.

105.

Amendment of Section 131.

- In Section 131 of the said Code, in sub-section (1), -

(a)

in Hindi version, in clause (e), for the words ^rhu ekg
the words ^,d o`kZ
shall be substituted;

(b)

at the end of clause (f), for the punctuation mark "," the punctuation mark "." shall be substituted.

106.

Amendment of Section 132.

- In Section 132 of the said Code -

(a)

in Hindi version, in sub-section (1), -

(i)

for the words ^jhfr esa dk;Zokgh djsxk
the words ^jhfr ls dk;Zokgh djsxk
shall be substituted;

(ii)

in clause (b), in sub-clause (i), for the word ^tk,xsa
the word ^tk;saxs
shall be substituted;

(iii)

in clause (b), in sub-clause (ii), for the words and punctuation marks ^;Fkk fu;r izfriwfrZ dk Hkwxrku djus ij ,slh Qlyksa] isM+ksa ;k ,sls isM+ksa ds Qyksa dks ns[kHkky djus] ,df=r djus ;k gVkus dk vf/kdkj gksxk tc rd fd ,slh Qly ;k isM+ ;FkkfLFkfr] ,df=r djus ;k gVkus dk vf/kdkj gksxk tc rd fd ,sls Qly ;k isM+ ;FkkfLFkfr] ,df=r ;k gVk;s ;k e`r ;k dkVs ugha tkrs
the words and punctuation marks ^;Fkk fu;r izfrdj dk Hkqxrku djus ij ,slh Qlyksa] isM+ksa ;k ,sls isM+ksa ds Qyksa dh ns[kHkky djus] ,df=r djus ;k gVkus dk vf/kdkj gksxk tc rd fd ,slh Qly ;k isM+ ;FkkfLFkfr] ,df=r fd;s ;k gVk;s ;k dkVs ugha tkrs ;k os e`r ugha gks tkrsA
shall be substituted.

(b)

in Hindi version, in sub-section (2), for the words ^ns; izfriwfrZ

the words ^ns; izfrdj
shall be substituted.

107.

Amendment of Section 133.

- In Section 133 of the said Code, in Hindi version, for the words ^okn pykus ds cnys esa
the words

okn pykus ds ctk;

and in clause (c) thereof, for the words ^uqdlku dh ejEer gsrq
the words

uqdlku dh HkjikbZ gsrq

shall be substituted.

108.

Amendment of Section 135.

- Section 135 of the said Code shall be deleted.

109.

Amendment of Section 136.

- In Section 136 of the said Code -

(a)

for sub-section (1), the following sub-section shall be substituted, namely -

"(1) Notwithstanding anything contained in other provisions of this Code, the Sub-Divisional Officer may, of his own motion or on the application of the Gram Panchayat or other local authority, eject any person taking or retaining possession of any land specified in sub-section (2), if such possession is in contravention of the provisions of this Code and is without the consent of such Gram Panchayat or the local authority and shall also be liable to pay damages at the rates prescribed..".

(b)

in sub-section (2), in clause (c), for the punctuation mark "." the punctuation ";" shall be substituted;

(c)

in the Explanation, for the words "trees and improvements" the words "trees and other improvements" shall be substituted.

110.

Amendment of Section 137.

- In Section 137 of the said Code, in sub-section (1), -

(a)

in Hindi version, for the words ^mica/kksa ds vuqlkj ls fHkUu fdlh Hkwfe ls cs[n[ky fd;k x;k ;k cs[n[kyh dh izR;k'kk ds Hk;
ls

the words ^mica/kksa ds vuqlkj ls vU;Fkk fdlh Hkwfe ls cs[n[ky fd;k x;k ;k cs[n[kyh ls vk'kafdr
shall be substituted;

(b)

in clause (0, for the words and punctuation mark "land;" the words and punctuation mark "land; or" shall be substituted.

111.

Insertion of heading after Section 143 and before Section 144 of the Code.

- After Section 143 and before Section 144 of the said Code, in Hindi version, the heading ^?kks'k.kkRed okn** shall be inserted.

112.

Amendment of Section 144.

- In Section 144 of the said Code, in Hindi version, in sub-section (2), in clause (b), for words ^i{kdkj gksaxs

the words ^i{kdkj gksxk

shall be substituted.

113.

Amendment of Section 145.

- For Section 145 of the said Code, in Hindi version, the following section shall be substituted, namely -

145- xzke iapk;r }kjk ?kks'k.kkRed oknfufnZ'V vuqrks'k vf/kfu;e] 1963 dh /kkjk 34 esa varfoZ'V fdlh ckr ds izfrdwy gksrs gq, Hkh xzke iapk;r fdlh O;fDr ds fo:) tks fdlh Hkwfe esa fdlh vf/kdkj ds gd dk nkok djrk gS] ,slh Hkwfe esa ,sls O;fDr ds vf/kdkj dh ?kks'k.k ds fy,] okn laLFkr dj ldrh gS vkSj U;k;ky; vius foosd ls ,sls O;fDr ds vf/kdkj dh ?kks'k.kk dj ldrk gS vkSj xzke iapk;r dks ,sls okn esa fdlh vU; vuqrks'k dh ekax djus dh vko';drk ugha gksxhA **.

114.

Amendment of Section 146.

- In Section 146 of the said Code, in Hindi version, -

(a)

for the words ^kiFki= ;k vU;Fkk ;g fl) gks tkrk gS

the words ^kiFki= }kjk ;k vU;Fkk ;g fl) gks tkrk gS

shall be substituted;

(b)

in clause (b), for the words ^gVkus csp nsus

the words

gVkus ;k csp nsus

and for the words ^vLFkk;h vkns'k

the words

vLFkk;h C;kns'k

shall be substituted.

115.

Insertion of Chapter and Heading after Section 146 and before Section 147 of the Code.

- After Section 146 and before Section 147 of the said Code, in Hindi version, the Chapter ^v/;k;nl

and heading ^ljdkjh iV~Vsnkj

shall be inserted.

116.

Amendment of Section 149.

- In Section 149 of the said Code, in Hindi version, for the words ^fuEufyf[kr fdlh ,d ;k vf/kd vk/kkj

the words ^fuEufyf[kr esa ls fdlh ,d ;k vf/kd vk/kkjksa

shall be substituted.

117.

Amendment of Section 152.

- In Section 152 of the said Code, in Hindi version, in the heading, for the words ^HkwjktLo ds cdk;k dh olwyh ns;ksa dh rjg

the words ^HkwjktLo ds cdk;s dh Hkkafr olwyh ;ksX; ns;

shall be substituted.

118.

Amendment of Section 153.

- In Section 153 of the said Code, in Hindi version, -

(a)

in sub-section (1), for the words and punctuation mark ^fd;k tk jgk gksA HkwjktLo fu/kkZfjr fd;k tk,xk

the words and punctuation mark ^fd;k tk jgk gks] HkwjktLo fu/kkZfjr fd;k tk,xk

shall be substituted;

(b)

in sub-section (4), in clause (a), for the words ^Hkou }kjk dCts dh Hkwfe

the words ^Hkou }kjk vkPNkfnr Hkwfe

shall be substituted.

119.

Amendment of Section 154.

- For Section 154 of the said Code, in Hindi version, the following section shall be substituted, namely -

154- Hkwfe/kj }kjk ns; HkwjktLo (1) izR;sd O;fDr tks bl lafgrk ds izkjEHk ds fnuakd ds iwoZ ls Hkwfe/kj ds :i esa dksbZ Hkwfe /kk.k dj jgk gks jkT; ljdkj dks HkwjktLo dh mlh /kujkf'k dk Hkqxrku djsxk vkSj djrk jgsxk tks og bl lafgrk ds izorZu

esa vkus ds o'kZ ds iwoZorhZ d`f'k o'kZ esa ,slh Hkwfe ds fy, djus dk nk;h Fkk-**

(2)

^izR;sd O;fDr tks ,sls izkjEHk ds i'pkr~ fdlh Hkwfe esa Hkwfe/kjh vf/kdkj vftZr djrk gS] bl lafgrk ds micU/kksa ds v/khu jgrs gq, jkT; ljdkj dks HkwjktLo dh mlh /kujkf'k dk Hkqxrku djsxk tks ,sls vtZu ds fnuakd ds Bhd iwoZ ,slh Hkwfe ds fy, ns; Fkh-**

(3)

^izR;sd O;fDr tks ,sls izkjEHk ds i'pkr~ fdlh Hkwfe esa Hkwfe/kjh vf/kdkj vftZr djrk gS flds IEcU/k esa ,sls vtZu ds Bhd iwoZ dksbZ HkwjktLo ns; ugha Fkk] mi ftykf/kdkjh }kjk ,sls fl)kUrksa ds vuq:i] tSls fofgr fd;s tk;sa] vo/kkfjr HkwjktLo dk Hkqxrku djus dk nk;h gksxkA**

120.

Amendment of Section 155.

- In Section 155 of the said Code, in Hindi version, for the words ^ugha fdz;k ;k the words ^unh fdz;k ;k shall be substituted.

121.

Amendment of Section 157.

- In Section 157 of the said Code, in Hindi version, for sub-section (2), the following sub-section shall be substituted, namely -

^2 blh izdkj] jkT; ljdkj] fdlh xzke ;k mlds Hkkx esa tgka ,slh foifRr vk;h gks] vlkeh }kjk xzke iapk;r dks ns; yxku ekQ dj ldrh gS ;k mls fdlh vof/k ds fy, LFkfxr dj ldrh gSA**

122.

Amendment of Section 159.

- In Section 159 of the said Code, in Hindi version, in clause (a), for the words and punctuation mark ^tk,xk] the words and punctuation mark ^tk,xk] vkSj shall be substituted.

123.

Amendment of Section 165.

- In Section 165 of the said Code, in Hindi version, for the words and punctuation mark ^,sls le; ij ,slh fdLrksa esa** the words and punctuation marks ^,sls le; ij] ,slh fdLrksa esa]** shall be substituted.

124.

Amendment of Section 168.

- In Section 168 of the said Code, in Hindi version, for the words and punctuation marks ^ckdhkj gks] fu'pk;d gksxkA the words and punctuation marks ^O;frdzeh gks] dk fu'pk;d izek.k gksxkA shall be substituted.

125.

Amendment of Section 170.

- In Section 170 of the said Code -

(a)

in Hindi version, in sub-section (1), -

(i)

for the words and punctuation marks ";," the words and punctuation marks ^HkwjktLo dh cdk;k fuEu fyf[kr fdlh ,d ;k vf/kd izfdz;k ls olwy dh tk ldrh gS] vFkkZr~ the words and punctuation marks ^ekax i= esa fofufnZ'V le; ds vUnj Hkqxrku u fd;s x;s HkwjktLo dh cdk;k fuEu fyf[kr fdlh ,d ;k vf/kd izfdz;kvksa ls olwy dh tk ldrh gS] vFkkZr~ shall be substituted;

(ii)

in clause (a), for the words ^fxjQrkjh ;k fu:) the words ^fxjQrkjh ;k mls fu:) shall be substituted;

(iii)

in clause (b), for the words "fodz; djus"
the words "fodz; djds"
shall be substituted;

(iv)

in clause (c), for the words "ykjdj"
the word "ykWdj"
shall be substituted;

(v)

in clause (e), for the words "k fcdzh djds"
the words "k mldh fcdzh djds"
shall be substituted;

(vi)

in clause (g), for the words "O;frdzeh fdlh"
the words
"O;frdzeh dh fdlh"
and for the words "fjlhoj fu;qfDr djds"
the words
"fjlhoj dh fu;qfDr djds"
shall be substituted.

(b)

in sub-section (2), for the words "bhumidhar or asami" the word "bhumidhar" shall be substituted.
126.

Amendment of Section 171.

- In Section 171 of the said Code -

(a)

in Hindi version, in sub-section (1), the words "d ckj esa**" shall be omitted;

(b)

in sub-section (2), for clause (a), the following clause shall be substituted, namely -

"(a) is a woman or a minor, or a senior citizen of 65 years or more, or a person as referred to in Section 95(1)(a);".

(c)

in Hindi version, in sub-section (3), for the words "ds fo:"
the words
"esa fu:"

and for the words "ck/; ugh djsxk"
the words
"ck/; djsxk"
shall be substituted;

(d)

after sub-section (4), the following sub-section shall be inserted, namely -

"(5) Notwithstanding anything contained in sub-section (1), no defaulter shall be arrested, unless the amount sought to be recovered exceeds fifty thousand rupees."

127.

Amendment of Section 172.

- In Section 172 of the said Code, in Hindi version, -

(a)

in sub-section (2), for clause (c), the following clause shall be substituted, namely -

"x /kkfeZd mikluk ds mi;ksx ds fy, vuU; :i ls vvx j[kh x;h oLrq,aA**"

(b)

in sub-section (3), for the words "vf/kdkjh dh ,slh izfrHkwfr"
the words "vf/kdkjh dks ,slh izfrHkwfr"
shall be substituted;

(c)

in sub-section (4), for the words and punctuation marks [^]tc dh visf{kr gks mls izLrqr djsxkA lqiqnZnkj mldh vfHkj{kk esa nh x;h IEifRr dh leLr {kfr ;k gkfu ds fy, nk;h gksxkA the words and punctuation marks [^]tc dgha visf{kr gks mls izLrqr djsxkA lqiqnZnkj mldh vfHkj{kk esa nh x;h IEifRr dh leLr {kfr ;k gkfu ;k vko';drk iM+us ij mls izLrqr djus esa foQyrk ds fy, nk;h gksxkA shall be substituted;

(d)

in sub-section (5), for the words [^]jhfr esa the words [^]jhfr ls shall be substituted.

128.

Amendment of Section 173.

- In Section 173 of the said Code, in Hindi version, -

(a)

in the marginal heading, for the word [^]ykdj the word [^]ykWdj shall be substituted;

(b)

for the words [^]vf/kdkf/kd jhfr esa the word vf/kdfFkr jhfr ls and for the word [^]ykdj the word ykWdj shall be substituted.

129.

Amendment of Section 174.

- In Section 174 of the said Code -

(a)

In sub-section (1), for the words "Sub-Divisional Officer" the word "Collector" shall be substituted;

(b)

In Hindi version, in sub-section (2), for the words [^]dqdhZ dh gks the words [^]dqdhZ dh x;h gks shall be substituted.

130.

Amendment of Section 175.

- In Section 175 of the said Code -

(a)

in sub-section (1), for the words "Sub-Divisional Officer" the word "Collector" shall be substituted;

(b)

in Hindi version, -

(i)

in sub-section (1), for the words [^]vuqxkeh tqykbZ the words [^]Bhd vxkeh tqykbZ shall be substituted;

(ii)

in sub-section (3), for the word iV~Vknkj the word iV~Vsnkj , for the word [^]izfdz;k

the word

izfdz;kvksa

and for the word

vo/kkfjr

the word ^leklr

shall be substituted.

131.

Amendment of Section 176.

- In Section 176 of the said Code - (a) in sub-section (1), -

(i)

for the words "Sub-Divisional Officer" the word "Collector" shall be substituted;

(ii)

in Hindi version, for the word ^vo/kkfjr

the word

leklr

and for the words, figure and punctuation marks ^,slh jhfr ls csp ldrk gS] tSlk fd /kkjk 200 ds vuqlkj fodz; vkxe leqfpr :i esa fofgr fd;s tk;sA

the words figure and punctuation mark

fofgr jhfr ls csap ldrk gS vkSj /kkjk 200 ds vuqlkj fodz; vkxe dk iz;ksx dj ldrk gSA

shall be substituted.

(b)

in sub-section (2), for the words "Sub-Divisional Officer" the word "Collector" and for the word "Collector" the words "Board of Revenue" shall be substituted.

132.

Amendment of Section 177.

- In Section 177 of the said Code, in Hindi version, -

(a)

for the words ^dqdhZ vkSj fcdzh dh olwyh

the words ^dqdhZ vkSj fcdzh djds olwyh

shall be substituted;

(b)

in the proviso, for the words and punctuation marks ^fdlh d`kd dh mlls ,dne layXu edku] vU; Hkou mldh lkexzh ,oa LFky lfgr vkSj Hkwfe] tks mlds }kjk v;/kflr gks

the words and punctuation marks ^fdlh d`kd dk edku ;k vU; Hkou mldh lkexzh ,oa LFky lfgr vkSj mlls ,dne layXu Hkwfe] tks mlds }kjk v;/kflr gks]

shall be substituted.

133.

Amendment of Section 178.

- In Section 178 of the said Code, in Hindi version, -

(a)

in sub-section (1), in clause (c), for the words ^nLrkostksa dk

the words ^nLrkostksa dk fu'iknu

shall be substituted;

(b)

in sub-section (6), for the words ^fjlhoj dysDVj

the words and punctuation mark

fjlhoj] dysDVj

and for the word ^lesa

the word

les

shall be substituted;

(c)

in sub-section (7), for the words and punctuation marks ^tku cwdj O;frdze voKk] fdlh IEifRr ds IEcU/k esa xEHkhj yksi] ;k nqfoZfu;ksx ds vk/kkj ij

the words and punctuation marks ^tku cwdj O;frdze] voKk] vopkj] xEHkhj yksi ;k fdlh IEifRr ds nqfoZfu;ksx ds vk/kkj ij shall be substituted;

(d)

in sub-section (8), for the words ^dysDVj dks fjlhoj dh lquokbZ dk volj nsus ds i'pkr~ ;k vko/kkj.k djus fd

the words ^dysDVj dks fjlhoj dks lquokbZ dk volj nsus ds i'pkr~ ;g vo/kkj.k djds dh]

shall be substituted.

134.

Amendment of Section 179.

- In Section 179 of the said Code, in Hindi version, for the words ^bl v;/k; ds vuqlkj cdk;ksa ;k HkwjktLo ds :i esa olwyh ;ksX; HkwjktLo ;k vU; ns;ksa dks laxzg djus ds iz;kstukFkZ

the words ^bl v;/k; ds vuqlkj HkwjktLo vFkok HkwjktLo ds cdk;s dh Hkkafr olwyh ;ksX; vU; ns;ksa dk laxzg djus ds iz;kstukFkZ

shall be substituted.

135.

Amendment of Section 180.

- In Section 180 of the said Code, in Hindi version, -

(a)

in sub-section (1), for the words ^mik;ksa dk O;;

the words ^izfdz;kvksa dk O;;

shall be substituted;

(b)

in sub-section (3), for the words ^mlh jhfr esa

the words ^mlh jhfr ls

shall be substituted.

136.

Amendment of Section 181.

- In Section 181 of the said Code, in Hindi version, -

(a)

in sub-section (1), in proviso, for the words and punctuation mark ^ml lhek rd gksxk tks mlds gkFk yxh gS vkSj ftdk fof'kor~ fuLrkj.k ugha gqvk gSA

the words and punctuation mark ^ml lhek rd gksxk tks mlds gkFk yxh gSA

shall be substituted;

(b)

in sub-section (2), for the word ^izfrHkwr

the word

izfrHkw

and for the words ^Loa; ckdhnkj jgk gks

the words

Lo;a O;frdzeh gks

shall be substituted.

137.

Amendment of Section 182.

- In Section 182 of the said Code, in Hindi version, -

(a)

in sub-section (1), for the words ^izR;sd izfdz;k

the words ^izR;sd vknsf'kdk

shall be substituted;

(b)

in sub-section (2), for the words figures and punctuation mark [^]fu;e 54] vkns'k 21 the words and figures [^]vkns'k 21 ds fu;e 54 shall be substituted.

138.

Amendment of Section 183.

- In Section 183 of the said Code -

(a)

in Hindi version, in sub-section (1), in proviso, in clause (c), for the words [^];k tgka dqdhZ the words [^]tgka dqdhZ shall be substituted;

(b)

in sub-section (2), for the words "three months" the words "sixty days" shall be substituted.

139.

Amendment of Section 184.

- In Section 184 of the said Code -

(a)

in sub-section (1), -

(i)

in Hindi version, for the word [^]mi dysDVj the word [^]dysDVj shall be substituted;

(ii)

in clause (b), for the words "the estimated value of such property" the words "the estimated value, reserve price and circle rate of such property" shall be substituted;

(iii)

in Hindi version, in clause (g), for the words [^]tSlk fd dysDVj the words [^]ftUgsa fd dysDVj shall be substituted.

(b)

in sub-section (2), -

(i)

in Hindi version, for the words [^]fodz; fd, tkus gsrq the words [^]tgka fodz; fd, tkus gsrq shall be substituted;

(ii)

for the figure and word "5.04 hectares" the figures and word "5.0586 hectares" shall be substituted.

140.

Amendment of Section 185.

- In Section 185 of the said Code, in Hindi version, -

(a)

for the words [^]izR;sd LFKkuksa the words izR;sd LFKku

and for the word and punctuation mark [^]tk;sxhA the word and punctuation mark tk;sxh%

shall be substituted;

(b)

at the end of clause (a), the punctuation mark "," shall be inserted;

(c)

in clause (c), for the words [^]dqN vU;

the words ^dksbZ vU;
shall be substituted.

141.

Amendment of Section 186.

- In Section 186 of the said Code, in Hindi version, -

(a)

in the marginal heading, for the words ^fdlds }kjk fd;k x;k
the words ^fdlds }kjk fd;k tk;
shall be substituted;

(b)

for sub-section (2), the following sub-section shall be substituted, namely -

^2 dksbZ fodz; jfookj ;k jkT; ljdkj ds dk;kZy;ksa ds fy, vf/klwfpr vU; vodk'k fnol esa ugha fd;k tk;sxA**

142.

Amendment of Section 188.

- In Section 188 of the said Code, in Hindi version, in sub-section (1), for the words and punctuation marks ^fodz; dh x;h IEifRr] ds fy, cksyh ugha yxk;sxk ;k dks vftZr djus dk iz;kl ugha djsxk ;k mlesa dksbZ :fp ugha ysxkA
the words and punctuation mark ^fodz; dh x;h IEifRr vFkok mlls IEcfU/kr fdlh fgr ds fy, cksyh ugha yxk;sxk ;k mldks vftZr ugha djsxk ;k vftZr djus dk iz;kl ugha djsxA
shall be substituted.

143.

Amendment of Section 189.

- In Section 189 of the said Code, in Hindi version, -

(a)

in the marginal heading, for the words ^dzsrk }kjk tek jkf'k vkSj O;frdze ij iqu% fodz;
the words ^dzsrk }kjk jkf'k dk tek fd;k tkuk vkSj O;frdze ij iqu% fodz;
shall be substituted;

(b)

in sub-section (1), for words ^iqu% fodz; esa ewY; esa gksus okyh fdlh deh ;k deh
the words ^iqu% fodz; ij ewY; esa gksus okyh fdlh deh
shall be substituted.

144.

Amendment of Section 190.

- In Section 190 of the said Code, in Hindi version, -

(a)

in the heading, for the words ^dz; /ku dk tek
the words ^dz; /ku dk tek fd;k tkuk
shall be substituted;

(b)

for clause (b), the following clause shall be substituted, namely-

^[k /kkjk 189 ds v/khu tek dh x;h /kujkf'k jkT; ljdkj dks leig`r gks tk;sxA**.

145.

Amendment of Section 191.

- In Section 191 of the said Code -

(a)

for the words "an amount equal to the amount of the highest bid" the words "an amount equal to the amount of the highest bid and a sum equal to one per cent amount of the purchase money for payment to the purchaser," shall be substituted;

(b)

after the existing proviso, the following proviso shall be inserted, namely -

"Provided further that where the auction sale in favour of highest bidder is not confirmed due to the preference under this section, he shall be entitled to receive back the money deposited by him plus an amount equivalent to one per cent of

such money deposited for that purpose.".

146.

Amendment of Section 192.

- In Section 192 of the said Code -

(a)

in sub-section (I), -

(i)

in Hindi version, for the words "एक रुपया के दस पैसे, दस रुपया के दस पैसे के कड़े; एसा ;क फायदे के कड़े ;क मि के कड़े एसा वकसुन के लड़के गसा

, the words "एक रुपया के दस पैसे, दस रुपया के दस पैसे के कड़े; एसा ;क फायदे के कड़े ;क मि के कड़े एसा तैक के वकसुन के लड़के गस

shall be substituted;

(ii)

in clause (a), for the words "five per cent" the words "one per cent" shall be substituted;

(iii)

in Hindi version, in clause (c), for the words "एक रुपया के दस पैसे

the words "एक रुपया के दस पैसे

shall be substituted;

(b)

in Hindi version, in sub-section (3), for the words "एक रुपया के दस पैसे

the words "एक रुपया के दस पैसे

shall be substituted.

147.

Amendment of Section 193.

- In Section 193 of the said Code, in Hindi version, -

(a)

in sub-section (1), for the words "एक रुपया के दस पैसे, दस रुपया के दस पैसे के कड़े; एसा ;क फायदे के कड़े ;क मि के कड़े एसा वकसुन के लड़के गसा

the words "एक रुपया के दस पैसे, दस रुपया के दस पैसे के कड़े; एसा ;क फायदे के कड़े ;क मि के कड़े एसा तैक के वकसुन के लड़के गस

shall be substituted;

(b)

in sub-section (3), for the word "एक रुपया के दस पैसे

the word "एक रुपया के दस पैसे

shall be substituted.

148.

Amendment of Section 194.

- In Section 194 of the said Code -

(a)

in Hindi version, in sub-section (1) for the words "एक रुपया के दस पैसे, दस रुपया के दस पैसे के कड़े; एसा ;क फायदे के कड़े ;क मि के कड़े एसा वकसुन के लड़के गसा

the words "एक रुपया के दस पैसे, दस रुपया के दस पैसे के कड़े; एसा ;क फायदे के कड़े ;क मि के कड़े एसा तैक के वकसुन के लड़के गस

shall be substituted;

(b)

in sub-section (2), -

(i)

in Hindi version, in clause (a), for the words "एक रुपया के दस पैसे, दस रुपया के दस पैसे के कड़े; एसा ;क फायदे के कड़े ;क मि के कड़े एसा वकसुन के लड़के गसा

the words "एक रुपया के दस पैसे, दस रुपया के दस पैसे के कड़े; एसा ;क फायदे के कड़े ;क मि के कड़े एसा तैक के वकसुन के लड़के गस

shall be substituted;

(ii)

in clause (b), for the words "is less than the amount of arrears specified in the sale proclamation" the words "is less than the reserve price or the amount of arrears specified in the sale proclamation" shall be substituted.

149.

Amendment of Section 195.

- In Section 195 of the said Code, in Hindi version, the following section shall be substituted, namely -

^195- /kkjk 192] /kkjk 193 ;k /kkjk 194 esa fdlh ckr ds gksrs gq, Hkh] ;fn dysDVj ;k vk;qDr] tSlh Hkh fLFkr gks] dks ,slk fo'okl djus dk dkj.k gS fd bl v/k; ds v/khu gq, fldh LFkoj lEifRr ds fodz; dks vikLr fd;k tkuk pkfg, rks uhykeh dzsrk dks dkj.k] ;fn dksbZ gS] crkus dh uksfVI nsrs gq, og fodz; dks ys[kc] fd;s tkus okys dkj.kksa ij vikLr dj ldrk gSA**.

150.

Amendment of Section 197.

- In Section 197 of the said Code, for the words "five per cent" the words "one per cent" shall be substituted.

151.

Amendment of Section 198.

- In Section 198 of the said Code, in Hindi version, at the end of sub-section (2), the punctuation mark "1" shall be inserted.

152.

Amendment of Section 199.

- In Section 199 of the said Code, in Hindi version, in sub-section (1), for the words ^miHkksx dj the words ^mi;ksx dj shall be substituted.

153.

Amendment of Section 200.

- In Section 200 of the said Code, in Hindi version, for the word ^miHkksx the words mi;ksx and in clause (a), for the words ^laxzg izHkkjh the words laxzg izHkkjh shall be substituted.

154.

Amendment of Section 201.

- In Section 201 of the said Code, in Hindi version, for the words and punctuation marks ^rks dysDVj }kjk ljlh :i ls cs[n[ky dj fn;k tk;sxk tks ,slk cy] tSlk vko';d lek tk; dk mi;ksx dj ldrk gS ;k dj ldrk gSA the words and punctuation marks ^rks dysDVj }kjk mls ljlh :i ls cs[n[ky dj fn;k tk;sxk ,oa dysDVj bl gsrq ,slk cy] tSlk vko';d gks dk mi;ksx dj ldrk gS ;k dj ldrk gSA shall be substituted.

Related AI tags, queries and research notes

Translation